

## 25SMCV06607 25SMCV06607

County: los-angeles

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Case Number: 25SMCV06607 Hearing Date: August 13, 2026 Dept: M

CASE NAME: Le, et al., v. Lemile, et al.

CASE NO.: 25SMCV06607

MOTION: Motion to Strike

HEARING DATE: 8/13/2026

### LEGAL STANDARD

Any party, within the time allowed to respond to a pleading may serve and file a notice of motion to strike the whole or any part thereof. (CCP § 435(b)(1); Cal. Rules of Court, Rule 3.1322(b).) The court may, upon a motion or at any time in its discretion and upon terms it deems proper: (1) strike out any irrelevant, false, or improper matter inserted in any pleading; or (2) strike out all or any part of any pleading not drawn or filed in conformity with the laws of California, a court rule, or an order of the court. (CCP §§ 436(a)-(b); *Stafford v. Shultz* (1954) 42 Cal.2d 767, 782 ["Matter in a pleading which is not essential to the claim is surplusage; probative facts are surplusage and may be stricken out or disregarded".])

"In order to survive a motion to strike an allegation of punitive damages, the ultimate facts showing an entitlement to such relief must be pled by a plaintiff. [Citations.] In passing on the correctness of a ruling on a motion to strike, judges read allegations of a pleading subject to a motion to strike as a whole, all parts in their context, and assume their truth. [Citations.] In ruling on a motion to strike,

courts do not read allegations in isolation. [Citation.]” (Clauson v. Superior Court (1998) 67 Cal.App.4th 1253, 1255.) In order to state a prima facie claim for punitive damages, a complaint must set forth the elements as stated in the general punitive damage statute, Civil Code section 3294. (Coll. Hosp., Inc. v. Superior Court (1994) 8 Cal.4th 704, 721.) These statutory elements include allegations that the defendant has been guilty of oppression, fraud or malice. Civil Code section 3294 defines malice as conduct “intended by the defendant to cause injury to the plaintiff,” or “despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others.” (Id.) Despicable is a powerful term used to describe circumstances that are “base,” “vile,” or “contemptible.” (Coll. Hosp., supra, 9 Cal.4th at 726.) The statute “plainly indicates that absent an intent to injure the plaintiff, “malice” requires more than a “willful and conscious” disregard of the plaintiffs’ interests. The additional component of “despicable conduct” must be found.” (Id.) “The mere allegation an intentional tort was committed is not sufficient to warrant an award of punitive damages. [Citation.] Not only must there be circumstances of oppression, fraud or malice, but facts must be alleged in the pleading to support such a claim. [Citation.]” (Grieves v. Superior Ct. (1984) 157 Cal.App.3d 159, 166, fn. omitted.)

“Liberality in permitting amendment is the rule, if a fair opportunity to correct any defect has not been given.” (Angie M. v. Superior Court (1995) 37 Cal.App.4th 1217, 1227.) It is an abuse of discretion for the court to deny leave to amend where there is any reasonable possibility that plaintiff can state a good cause of action. (Goodman v. Kennedy (1976) 18 Cal.3d 335, 349.) The burden is on plaintiff to show, in what manner, plaintiff can amend the complaint, and, how, that amendment will change the legal effect of the pleading. (Id.)

## ANALYSIS

Defendant Lance L. Newman moves to strike portions of Plaintiffs Jonathan Le, Nancy Ho, and Huge Le’s Complaint regarding punitive damages.

The Complaint arises from an alleged dog attack/bite incident on July 20, 2025, on a sidewalk adjacent to a premises located at 520 Ashland Avenue, Santa Monica (“the premises”). (Compl., ¶ 12.) At the time of the incident, Defendants Julia Teachey Lemle, Lance L. Newman, and Alan G.

Newman owned and kept the subject dog, a medium build husky, at the premises. (Id. ¶ 2.) The dog jumped over and/or through a gap or opening in a low fence on the premises, which was unsafe and/or in disrepair. (Id., ¶ 13.) As a result, the dog bit Plaintiff Jonathan Le on his upper rear thigh, resulting in puncture wounds and permanent scarring, as well as emotional distress in Plaintiffs. (Id., ¶¶ 14-15.) Plaintiffs further allege that Defendants deliberately failed to restrain and/or muzzle the dog, properly secure and enclose the premises, or warn the public of the dangerous propensities of the dog. (Id., ¶¶ 19-20.) Defendants knew that the dog was aggressive and had dangerous behavior, and they consciously disregarded the substantial risk that the dog would attack others in light of the known propensities. (Id.)

Even

assuming the truth of the allegation that Defendants knew of the dog's dangerous propensities, the facts neither show despicable conduct, nor reveal that any of the alleged conduct was carried out with a willful and conscious disregard of the rights or safety of Plaintiffs. The facts only establish that Defendants failed to maintain their fence, or had an insufficient fence to restrain the dog, which sounds in mere negligence. While Defendants may be strictly liable for the dog bite, Plaintiffs cite no authority that a failure to maintain a fence or failure to warn others of a dangerous dog might be considered despicable conduct. (*Uccello v. Laudenslayer* (1975) 44 Cal.App.3d 504, 514; *Salinas v. Martin* (2008) 166 Cal.App.4th 404, 413.)

Accordingly,

the motion to strike is GRANTED. Leave to amend will only be granted if Plaintiff proffers additional facts which show a reasonable possibility of successful amendment, i.e., that Defendants engaged in despicable conduct.